

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 17-07

**PORT ELIZABETH TERMINAL & WAREHOUSE CORP.
COMPLAINANT
v.
THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY
RESPONDENT**

**CERTIFICATION OF JUAN M. BARRAGAN CONCERNING COMPLAINANT'S
MOTION TO EXTEND THE DISCOVERY END DATE**

I, Juan M. Barragan, of full age, hereby certify:

1. I am an attorney-at-law and responsible for handling this matter on behalf of Respondent, The Port Authority of New York and New Jersey (the "Port Authority"). I am fully familiar with the circumstances set forth herein based upon my review of the file maintained by my office.

2. I make this certification concerning the motion to extend the discovery end date that was filed by Complainant, Port Elizabeth Terminal & Warehouse ("PETW").

3. The Port Authority has no objection to extending the discovery end date. However, the extension should only be for 16 days to Thursday, February 1, 2018; this short extension will allow the parties to take the necessary depositions and complete discovery.

4. I have conferred with PETW's counsel and we have agreed on the following:

- The deposition of a Port Authority R. 30(b)(6) witness shall take place on January 26, 2018 at 10:00 a.m. at 4 World Trade Center, 150 Greenwich Street, New York, New York.
- The deposition of Patrick J. Wynne, president of PETW, shall take place on

January 30, 2018 at 10:00 a.m. at a location to be mutually agreed upon and determined.

- The deposition of PETW employee Michael Morrow shall take place on February 1, 2018 at 10:00 a.m. at a location to be mutually agreed upon and determined.

5. In the event Your Honor is inclined to extend the discovery end date, the Port Authority respectfully requests that Your Honor incorporate the above deposition schedule into the order.

6. In his certification, PETW's counsel claims that I did not respond to his emails regarding the status and filing of the present motion. This is simply not true.

7. In fact, I was the one who prepared all the papers, including the joint certification, in order to extend the discovery end date. I forwarded a copy of same to PETW's counsel on January 9, 2018 via email for his review and approval. *See* Ex. A, a true and correct copy of the January 9, 2018 email without attachments.

8. As PETW's counsel did not respond to my email, on January 10, 2018, I emailed PETW's counsel again to inquire about the status of same. *See* Ex. B, a true and correct copy of the January 10, 2018 email. PETW's counsel did not respond to my January 10, 2018 email.

9. On Friday, January 12, 2018, I advised PETW's counsel via email that I do not receive the signed joint certification by 1:00 p.m., I would be filing a motion to dismiss. *See* Ex. C, a true and correct copy of the January 12, 2018 email.

10. As PETW's counsel did not provide me with the signed joint certification, at 1:30 pm, I filed the Port Authority's motion to dismiss. *See* Ex. D, a true and correct copy of the January 12, 2018 email without attachments.

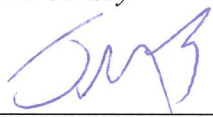
11. It was not until 1:42 pm that PETW's counsel provided me with his consent to affix his electronic signature and file the joint motion to extend the discovery end date. *See* Ex. E, a true and correct copy of the January 12, 2018 email from PETW's counsel without attachments.

12. However, at that point, moving to extend the discovery end date seemed moot, given that I had already filed a motion to dismiss.

13. Nonetheless, in an effort to complete the outstanding discovery, the Port Authority joins PETW's request to extend the discovery end date. However, as explained above, the extension should only be for 16 days, until February 1, 2018.

I certify that the foregoing statements are true. I am aware that if any of the foregoing statements are willfully false, I am subject to punishment.

PORT AUTHORITY LAW DEPARTMENT
*Attorneys for The Port Authority of New York
and New Jersey*

By: 

Juan M. Barragan

Dated: January 18, 2018

EXHIBIT A

Barragan, Juan

From: Barragan, Juan
Sent: Tuesday, January 9, 2018 11:07 AM
To: 'Donald Burke'
Cc: Paul Donovan; Kromm, David (dkromm@panynj.gov)
Subject: PETW
Attachments: Certification.docx; Exhibit A.docx; Notice of Motion.docx

Don,

Attached are the documents for the joint motion to extend the discovery end date. Please provide me with Patrick Wynne's availability for his deposition so that I can add it into the stipulation. Also, let me know the date that you intend to depose the PA representative per his availability (Jan. 22, Jan. 23, Jan. 30, Feb. 1, and Feb. 2).

Juan M. Barragan
Attorney
Law Department
The Port Authority of New York and New Jersey
4 World Trade Center
150 Greenwich Street, 24th Floor
New York, NY 10007
Tel. No.: (212) 435-3529
Fax No.: (212) 435-3834

EXHIBIT B

Barragan, Juan

From: Barragan, Juan
Sent: Wednesday, January 10, 2018 12:15 PM
To: 'Donald Burke'
Cc: 'Paul Donovan'; Kromm, David (dkromm@panynj.gov)
Subject: RE: PETW

Don,

We need to file this motion soon. Please advise on this.

From: Barragan, Juan
Sent: Tuesday, January 9, 2018 11:07 AM
To: 'Donald Burke' <donaldburkeesq@gmail.com>
Cc: Paul Donovan <paul.donovan@laroelaw.com>; Kromm, David (dkromm@panynj.gov) <dkromm@panynj.gov>
Subject: PETW

Don,

Attached are the documents for the joint motion to extend the discovery end date. Please provide me with Patrick Wynne's availability for his deposition so that I can add it into the stipulation. Also, let me know the date that you intend to depose the PA representative per his availability (Jan. 22, Jan. 23, Jan. 30, Feb. 1, and Feb. 2).

Juan M. Barragan
Attorney
Law Department
The Port Authority of New York and New Jersey
4 World Trade Center
150 Greenwich Street, 24th Floor
New York, NY 10007
Tel. No.: (212) 435-3529
Fax No.: (212) 435-3834

EXHIBIT C

Barragan, Juan

From: Barragan, Juan
Sent: Friday, January 12, 2018 11:53 AM
To: 'Donald Burke'
Cc: 'Paul Donovan'; Kromm, David (dkromm@panynj.gov)
Subject: RE: PETW

Don,

Please be advised that if you do not provide me with the signed joint motion to extend the discovery end date by 1:00 pm today (along with the dates for the depositions to incorporate them into the order), I will have no option but to file the motion to dismiss that I have prepared.

From: Barragan, Juan
Sent: Wednesday, January 10, 2018 12:15 PM
To: 'Donald Burke' <donaldburkeesq@gmail.com>
Cc: 'Paul Donovan' <paul.donovan@laroelaw.com>; Kromm, David (dkromm@panynj.gov) <dkromm@panynj.gov>
Subject: RE: PETW

Don,

We need to file this motion soon. Please advise on this.

From: Barragan, Juan
Sent: Tuesday, January 9, 2018 11:07 AM
To: 'Donald Burke' <donaldburkeesq@gmail.com>
Cc: Paul Donovan <paul.donovan@laroelaw.com>; Kromm, David (dkromm@panynj.gov) <dkromm@panynj.gov>
Subject: PETW

Don,

Attached are the documents for the joint motion to extend the discovery end date. Please provide me with Patrick Wynne's availability for his deposition so that I can add it into the stipulation. Also, let me know the date that you intend to depose the PA representative per his availability (Jan. 22, Jan. 23, Jan. 30, Feb. 1, and Feb. 2).

Juan M. Barragan
Attorney
Law Department
The Port Authority of New York and New Jersey
4 World Trade Center

150 Greenwich Street, 24th Floor
New York, NY 10007
Tel. No.: (212) 435-3529
Fax No.: (212) 435-3834

EXHIBIT D

Barragan, Juan

From: Barragan, Juan
Sent: Friday, January 12, 2018 1:30 PM
To: Secretary
Cc: Kromm, David; 'Paul Donovan'; 'Donald Burke'; 'Judges'
Subject: Docket No. 17-07, Respondent, Port Authority of New York and New Jersey's Motion to Dismiss
Attachments: 1-12-18 Affidavit of Service.pdf; 1-12-18 Cert. of Juan M. Barragan with Exhibits.pdf; 1-12-18 Memorandum of Law in Support of Motion.pdf; 1-12-18 Notice of Motion.pdf

Dear Madam/Sir,

I represent Respondent, The Port Authority of New York and New Jersey (the "Port Authority"). Attached please find the following in support of the Port Authority's motion to dismiss:

- Notice of motion
- Certification of Juan M. Barragan with accompanying exhibits
- Memorandum of law
- Affidavit of service

An original and five copies of the above documents are being sent to the FMC via FedEx Express. Copies of the above documents are being sent via FedEx Express to all other parties to this action.

Juan M. Barragan
Attorney
Law Department
The Port Authority of New York and New Jersey
4 World Trade Center
150 Greenwich Street, 24th Floor
New York, NY 10007
Tel. No.: (212) 435-3529
Fax No.: (212) 435-3834

EXHIBIT E

Barragan, Juan

From: Donald Burke <donaldburkeesq@gmail.com>
Sent: Friday, January 12, 2018 1:42 PM
To: Barragan, Juan
Cc: Kromm, David; Paul Donovan; dfburkejr
Subject: PET&W v PANYNJ
Attachments: 1-12-18 Certification dfb ch.doc; 1-12-18 Notice of Motion to Extend Discovery.doc;
1-12-18 Exhibit A.doc

Dear Mr. Barragan,

See attached. Please complete and file. You are authorized to affix my electronic signature (s/) as long as no changes are made. Thank you,

--

Donald F. Burke
Certified Civil Trial Attorney
45 Gale Road
Brick, New Jersey 08723
Phone: (732) 966-4922

BEFORE THE
FEDERAL MARITIME COMMISSION

Docket No. 17-07

PORT ELIZABETH TERMINAL & WAREHOUSE CORP.
COMPLAINANT

v.

THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY
RESPONDENT

AFFIDAVIT OF SERVICE

Tyler L. Hinton, being duly sworn, deposes and says:

That I am a Law Intern in The Port Authority of New York and New Jersey Law Department, am over the age of eighteen (18) years, am not a party to this action and have an office address at 4 World Trade Center, 150 Greenwich Street, New York, New York.

That on the 18th day of January 2018, I served the annexed **CERTIFICATION OF JUAN M. BARRAGAN CONCERNING COMPLAINANT'S MOTION TO EXTEND DISCOVERY END DATE** upon:

Law Offices of Donald F. Burke
45 Gale Road
Brick, New Jersey 08723
Attn: Donald F. Burke, Esq.

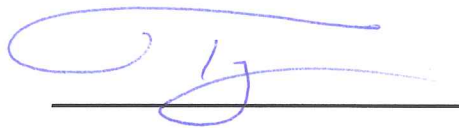
LaRoe, Winn, Moerman & Donovan
1250 Connecticut Avenue North West, Suite 200
Washington, DC 20036
Attn: Paul M. Donovan, Esq.

by depositing a true copy thereof in a sealed wrapper, in a depository maintained by FedEx to be shipped via FedEx Overnight Service at 4 World Trade Center, 150 Greenwich Street, 24th Floor, New York, New York 10007.

Sworn to before me this
18th day of January 2018.



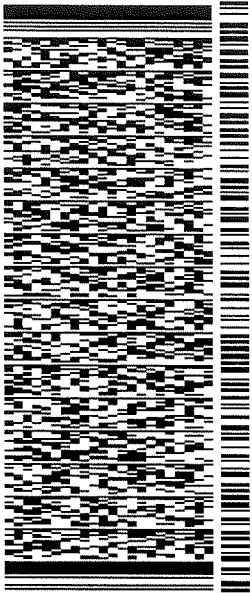
Notary Public



PRZEMYSŁAW PAWLIKOWSKI
Notary Public State of New Jersey
Commission No. 50040727
Qualified in Bergen County
Commission Expires June 23, 2021

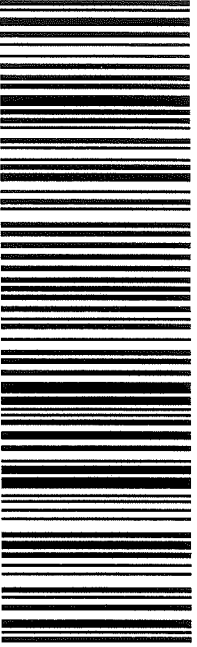
ORIGIN ID: PCTA (212) 435-3529 JUAN M. BARRAGAN, ESQ. PORT AUTHORITY OF NY & NJ 4 WORLD TRADE CENTER, 24TH FLOOR 150 GREENWICH STREET NEW YORK, NY 10007 UNITED STATES US		SHIP DATE: 18 JAN 18 ACTWGT: 1.00 LB CAD: 9080173INETS320
TO PAUL M. DONOVAN, ESQ. LAROE, WINN, MOERMAN & DONOVAN 1250 CONNECTICUT AVENUE NORTH WEST SUITE 200 WASHINGTON DC 20036 (202) 298-8100 REF: PETW V PA DEPT:		BILL SENDER

TRACK# 7712 5087 6627 0201	FRI - 19 JAN 3:00P STANDARD OVERNIGHT	DC-US IAD 20036
-------------------------------	--	-----------------





J172117091301ur



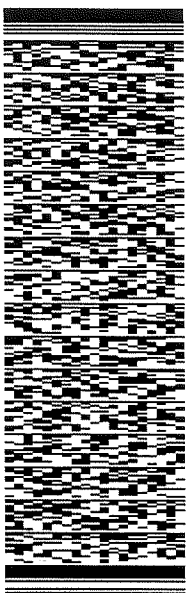
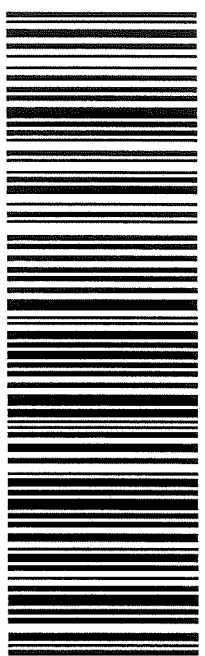
549J118D40104C

After printing this label:

1. Use the 'Print' button on this page to print your label to your laser or inkjet printer.
2. Fold the printed page along the horizontal line.
3. Place label in shipping pouch and affix it to your shipment so that the barcode portion of the label can be read and scanned.

Warning: Use only the printed original label for shipping. Using a photocopy of this label for shipping purposes is fraudulent and could result in additional billing charges, along with the cancellation of your FedEx account number.

Use of this system constitutes your agreement to the service conditions in the current FedEx Service Guide, available on fedex.com. FedEx will not be responsible for any claim in excess of \$100 per package, whether the result of loss, damage, delay, non-delivery, misdelivery, or misinformation, unless you declare a higher value, pay an additional charge, document your actual loss and file a timely claim. Limitations found in the current FedEx Service Guide apply. Your right to recover from FedEx for any loss, including intrinsic value of the package, loss of sales, income interest, profit, attorney's fees, costs, and other forms of damage whether direct, incidental, consequential, or special is limited to the greater of \$100 or the authorized declared value. Recovery cannot exceed actual documented loss. Maximum for items of extraordinary value is \$1,000, e.g. jewelry, precious metals, negotiable instruments and other items listed in our Service Guide. Written claims must be filed within strict time limits, see current FedEx Service Guide.

ORIGIN ID: PCTA (212) 435-3529 JUAN M. BARRAGAN, ESQ. PORT AUTHORITY OF NY & NJ 4 WORLD TRADE CENTER, 24TH FLOOR 150 GREENWICH STREET NEW YORK, NY 10007 UNITED STATES US		SHIP DATE: 18 JAN 18 ACTWGT: 1.00 LB CAD: 9080175/NET3920 BILL SENDER
TO DONALD F. BURKE, ESQ. ATTORNEY AT LAW 45 GALE ROAD		
BRICK NJ 08723 (732) 966-4922 REF: PETW PO: DEPT:		
  		
TRK# 0201 7712 5090 1827 STANDARD OVERNIGHT FRI - 19 JAN 3:00P	E2 MJXA NJ-US 08723 EWR	

549J18D40/104C

After printing this label:

1. Use the 'Print' button on this page to print your label to your laser or inkjet printer.
2. Fold the printed page along the horizontal line.
3. Place label in shipping pouch and affix it to your shipment so that the barcode portion of the label can be read and scanned.

Warning: Use only the printed original label for shipping. Using a photocopy of this label for shipping purposes is fraudulent and could result in additional billing charges, along with the cancellation of your FedEx account number.

Use of this system constitutes your agreement to the service conditions in the current FedEx Service Guide, available on fedex.com. FedEx will not be responsible for any claim in excess of \$100 per package, whether the result of loss, damage, delay, non-delivery, misdelivery, or misinformation, unless you declare a higher value, pay an additional charge, document your actual loss and file a timely claim. Limitations found in the current FedEx Service Guide apply. Your right to recover from FedEx for any loss, including intrinsic value of the package, loss of sales, income interest, profit, attorney's fees, costs, and other forms of damage whether direct, incidental, consequential, or special is limited to the greater of \$100 or the authorized declared value. Recovery cannot exceed actual documented loss. Maximum for items of extraordinary value is \$1,000, e.g. jewelry, precious metals, negotiable instruments and other items listed in our Service Guide. Written claims must be filed within strict time limits, see current FedEx Service Guide.